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| CASE #      | CASE NAME         | HEARING NAME                |
|-------------|-------------------|-----------------------------|
| CVME2402951 | MAXWELL VS WESTER | MOTION FOR SUMMARY JUDGMENT |

**Tentative Ruling:** Motion for Summary Judgment is denied. Plaintiff has failed to meet their burden to demonstrate that negligence could not be imputed to Defendant Wester through the conduct of entity Hidden Gems which is alleged in the Complaint. The moving papers for the MSJ do not align to the allegations in the Complaint. On motion for summary judgment, the issues are framed by the pleadings since it is those allegations to which the motion must respond.” (*Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640, citing 9 (1986) 179 Cal.App.3d 1061, 1064.) In addition, “material facts” that preclude the entry of summary judgment or summary adjudication are those that relate to the issues in the case as framed by the pleadings. (*Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, referencing *Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67.)

“It is well-settled that the pleadings set the boundaries of the issues to be resolved at summary judgment. [Citations.] ‘Thus, a ‘defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers.’ [Citation.] ‘To create a triable issue of material fact, the opposition evidence must be directed to issues raised by the pleadings. [Citation.] If the opposing party’s evidence would show some factual assertion, legal theory, defense or claim not yet pleaded, that party should seek leave to amend the pleadings before the hearing on the summary judgment motion. [Citations.] [Citation.] ‘[T]he pleadings “delimit the scope of the issues” to be determined and “[t]he complaint measures the materiality of the facts tendered in a defendant’s challenge to the plaintiff’s cause of action.” [Citation.] [Plaintiff’s] separate statement of material facts is not a substitute for an amendment of the complaint.’ ‘ [Citations.] ... Similarly, ‘ ‘ “[d]eclarations in opposition to a motion for summary judgment ‘are no substitute for amended pleadings.’ ” ’ ‘ [Citation.]” (*Vulk v. State Farm General Insurance Company* (2021) 69 Cal.App.5th 243, 255.)

The Complaint alleges in pertinent part as follows:

Defendant Christine Wester is the owner of the property where the trip and fall occurred on October 7, 2023. “Defendants” intended to sell the property, so they retained Defendant Ann Garrett dba Hidden Gems Estates and Boutique to conduct a sale of the contents of the home. Hidden Gems was responsible for staging the property for the event including location of items, pathways for customers and general maintenance and upkeep of the property during the sale. Hidden Gems responsibility was under the authority and direction of Wester.

On the second weekend of the sale, Plaintiff Lynn Maxwell, entered the property with Defendants permission to shop for items, including those in the backyard where they were on display. After selecting his items he walked along a path of paver stones to return to the sales area inside the home and tripped over a hose laid across the paver pathway required by patrons to enter the home and pay. The uncoiled hose created a “trap” for Plaintiff. The items in Plaintiff’s hand obscured his view of the ground and his foot became entangled in the loose hose, and caused him to fall. As a result, he landed on his head,

causing massive bleeding. Plaintiff, has incurred medical expenses, and loss of past and/or future income as a result of this accident and will require future medical care for the remainder of his life.

*Summary Judgment Standard:*

Either party may move for summary judgment “if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (CCP §437c(a).) Summary judgment is granted when a moving party establishes the right to entry of judgment on a particular cause of action as a matter of law. (CCP §437c(c).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (CCP §437c(c).) “In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgement shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (CCP §437c(c).) The court must view such evidence and inferences in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 844.)

The incident that gives rise to Plaintiff Lynn Maxwell’s Complaint occurred at 28998 Bradley Road in Menifee, CA. (UMF 2.) Defendant Christine Wester owns the property. (UMF 4.) Wester’s sister Martha Serab has power of attorney for Wester due to Wester’s physical condition. (UMF 3.) Wester intended to sell the property so she retained Ann Garrett through her business Hidden Gems Estates and Boutique to conduct a sale of the contents of the home. (UMF 5.)

Maxwell entered the property to shop for items at the sale and entered the backyard. (UMF 6.) A hose was laying all the way across the ground of the premises at the time of the incident. (UMF 12.)

Maxwell stepped over the hose on his way to get a water pump. (UMF 9) Maxwell was carrying a 50-60 pound antique water pump at the time his feet got tangled in the hose, laying across the walkway, as he was headed back to pay for the pump. (UMF 10; Maxwell Depo. 26:12-15, 27:14-20.) Maxwell fell and hit his head on the ground. Maxwell Depo. 27:14-20.)

Maxwell does not know how long the hose was laid out on the ground at the time of the incident or whether Wester knew that the hose was laid out at the time of the incident. (UMFs 7-8.)

Garrett took affirmative actions to make the property safe for estate sale customers. (SUMF 2.) Garrett was present at the property at the time of Maxwell’s fall. (SUMF 3.)

***Burden of Persuasion/Production:*** “[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. ... There is a triable issue of material fact if, and only if,

the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “[A] plaintiff bears the burden of persuasion that “each element of” the “cause of action” in question has been “proved,” and hence that “there is no defense” thereto. (Code Civ. Proc., § 437c, subd. (o)(1).) A defendant bears the burden of persuasion that “one or more elements of” the “cause of action” in question “cannot be established,” or that “there is a complete defense” thereto. (*Id.*, § 437c, subd. (o)(2).)” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. ... A burden of production entails only the presentation of “evidence.” (Evid.Code, § 110.) A burden of persuasion, however, entails the “establish[ment]” through such evidence of a “requisite degree of belief.” (*Id.*, § 115.) ... A prima facie showing is one that is sufficient to support the position of the party in question. (Cf. Evid.Code, § 602 [stating that a “statute providing that a fact or group of facts is prima facie evidence of another fact establishes a rebuttable presumption”].) No more is called for.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851.) “[H]ow the parties moving for, and opposing, summary judgment may each carry their burden of persuasion and/or production depends on which would bear what burden of proof at trial. ... [I]f a plaintiff who would bear the burden of proof by a preponderance of evidence at trial moves for summary judgment, he must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, he would not be entitled to judgment as a matter of law, but would have to present his evidence to a trier of fact. By contrast, if a defendant moves for summary judgment against such a plaintiff, he must present evidence that would require a reasonable trier of fact not to find any underlying material fact more likely than not—otherwise, he would not be entitled to judgment as a matter of law, but would have to present his evidence to a trier of fact.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851.)

**1<sup>st</sup> Cause of Action for Negligence:** The single cause of action in the Complaint is labeled as negligence. Further, the Complaint clearly sets forth that the alleged liability of Wester is based solely on the doctrine of respondeat superior regarding Garrett/Hidden Gems handling of the estate sale. The Complaint does not allege that Wester’s liability is based on a premises liability claim based directly on Wester’s ownership, maintenance and control of the property. As the Complaint frames how the court rules on a motion for summary judgment, the review is based on a single claim of negligence based on respondeat superior liability based on Garrett/Hidden Gems handling of the property during the estate sale.

The elements of a claim for premises liability are: 1) defendant was the owner, occupant or lessor of premises; 2) defendant was negligent in the use, maintenance or management of premises; and 3) negligence was a cause of injury, damage, loss or harm to plaintiff. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) Premises liability is a form of negligence. (*Id.*) The question of liability is whether, in the management of his property, the landowner has acted as a reasonable person

under all the circumstances. (*Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358, 372.) An owner or possessor of premises who knows of, or by the exercise of reasonable care could discover a dangerous condition of property has a duty to exercise ordinary care either to make the condition reasonably safe or to give an adequate warning. (*Chance v. Lawry's, Inc.* (1962) 58 Cal.2d 368, 373.) An owner of property is "not the insurer of the visitor's personal safety." (*Id.* at 1206.) In order to establish liability, the owner's actual or constructive knowledge of the dangerous condition is required. (*Id.*) Constructive knowledge may be established where the "evidence suggests that the dangerous condition was present for a sufficient amount of time." (*Id.*)

The moving papers address these elements from the perspective that the Complaint is alleging that Wester, as the owner of the property is the one that failed to exercise reasonable care to discover a dangerous condition and had actual or constructive knowledge. Whereas the Complaint does not allege that Wester failed to take such action, but is liable because her employee Garrett/Hidden Gems while in possession of the property failed to exercise reasonable care.

In essence, Maxwell the Complaint alleges that Garrett/Hidden Gems was negligent in failing to ensure that the property was safe for sale attendees, and Wester is liable through the doctrine of respondeat superior not as the owner of the property who herself failed to exercise reasonable care in maintaining her property. This means that the moving papers are not addressed to the actual claim made in the Complaint.